

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3787 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____ Amendment submitted by: Mark Chapman _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE

FOR

HOUSE BILL NO. 3787

By: Chapman

FLOOR SUBSTITUTE

An Act relating to elections; prohibiting persons who are not a qualified elector from filing as a candidate for any municipal office; prohibiting nonqualified electors from being appointed to any unexpired term for elected municipal office; amending 26 O.S. 2021, Section 5-105, as amended by Section 1, Chapter 43, O.S.L. 2022 (26 O.S. Supp. 2025, Section 5-105), which relates to registration requirements for candidates for state or county office; requiring candidates to be qualified electors; prohibiting nonqualified electors from being appointed to any unexpired term for elected state or county office; prohibiting nonqualified electors from being elected to or serving on a board of education for a school district or technology center school district; prohibiting nonqualified electors from being appointed to any unexpired term for elected school district or technology center school district office; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 16-115 of Title 11, unless there is created a duplication in numbering, reads as follows:

1 No person who is not a qualified elector as described in Section
2 1 of Article III of the Oklahoma Constitution may file as a
3 candidate for any municipal office. Such persons shall also be
4 prohibited from appointment to any unexpired term of any elected
5 municipal office.

6 SECTION 2. AMENDATORY 26 O.S. 2021, Section 5-105, as
7 amended by Section 1, Chapter 43, O.S.L. 2022 (26 O.S. Supp. 2025,
8 Section 5-105), is amended to read as follows:

9 Section 5-105. A. To file as a candidate for nomination by a
10 political party to any state or county office, a person must have
11 been a registered voter of that party for the six-month period
12 immediately preceding the first day of the filing period prescribed
13 by law and, under oath, so state. Provided, this requirement shall
14 not apply to a candidate for the nomination of a political party
15 which attains recognition less than six (6) months preceding the
16 first day of the filing period required by law. However, the
17 candidate shall be required to have registered with the newly
18 recognized party within fifteen (15) days after such party
19 recognition.

20 B. To file as an independent candidate for any state or county
21 office, a person must have been registered to vote as an independent
22 for the six-month period immediately preceding the first day of the
23 filing period prescribed by law and, under oath, so state.

1 C. To file as a candidate under either subsection A or B of
2 this section, a candidate must be a qualified elector as described
3 in Section 1 of Article III of the Oklahoma Constitution.

4 D. No person who is not a qualified elector as described in
5 Section 1 of Article III of the Oklahoma Constitution may be
6 appointed to any unexpired term of any elected state or county
7 office.

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 13A-112 of Title 26, unless
10 there is created a duplication in numbering, reads as follows:

11 No person may be elected to a board of education of a school
12 district or technology center school district who is not a qualified
13 elector as described in Section 1 of Article III of the Oklahoma
14 Constitution. Such persons shall be prohibited from appointment to
15 any unexpired term of any elected board of education of a school
16 district or technology center school district office.

17 SECTION 4. This act shall become effective November 1, 2026.

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